

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 6, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 26CV00828

WELLS FARGO v. ROGERS

(UNOPPOSED) PLAINTIFF’S MOTION FOR JUDGMENT ON THE PLEADINGS

The motion is denied without prejudice. Plaintiff served it to the wrong address for defendant (“77725 W. Zayante Rd., Unit A, Felton CA” instead of “7725 W. Zayante Rd., Unit A, Felton CA”). Plaintiff may re-serve and re-file its motion.

No. 25CV01247

STAPLETON v. TAIGMAN, et al.

DEFENDANTS CHRISTINE THORNE, CHARLES E. THORNE III DBA QUALITY HOMES’ DEMURRER TO AND MOTION TO STRIKE PLAINTIFF’S THIRD AMENDED COMPLAINT

The demurrer is overruled. Defendants are ordered to file answers no later than August 21, 2026.

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law”

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(*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters; therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Proc., §§ 430.30, 430.70.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (*Hahn, supra*, 147 Cal.App.4th at p. 747.)

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.” (Code Civ. Proc., § 436.)

Defendants Christine Thorne and Charles E. Thorne dba Quality Homes demur to the third cause of action for fraudulent concealment and fourth cause of action as to intentional misrepresentation as to Charles Thorne, and the sixth cause of action for negligence as to Christine Thorne and Charles Thorne on the grounds they fail to state facts sufficient to support them. (Code Civ. Proc., § 430.10(e).) Defendants also move to strike plaintiff’s prayer for relief as to Charles Thorne.

Based on the Court’s review of the complaint, when read liberally and in context, plaintiff’s allegations are sufficient to support her claims for fraudulent concealment and intentional misrepresentation against Charles Thorne, one of the primary owners of Quality Homes, and negligence against the Thornes related to their renovations to the property and duty to subsequent owners. The demurrer is therefore overruled.

No. 21CV01686

EVLESHIN et al. v. MEYER et al.

RETURN ON REMITTITUR

I. BACKGROUND

The Evleshins and the Meyers entered into a residential Purchase Agreement (“Agreement”) for the sale of property with a home. For the purposes of this motion, the relevant sections of the Agreement are as follows:

“Section 25. ATTORNEY FEES: in any action, or arbitration between Buyer or Seller arising out of this agreement, the prevailing Buyer or Seller shall be entitled to reasonable